

Arikathota Santhosh Kumar vs Arikathota Praveena on 25 April, 2022

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE: CIVIL REVISION PETITION No.675 of 2022

PROCEEDING SHEET

Sl	DATE	ORDER	OFFICE
No			NOTE
5.	25.4.2022	NJS, J	

Heard the learned counsel for the petitioner and the learned counsel for the respondent.

The present Civil Revision Petition is filed against the Order dated 17.11.2021 in I.A.No.501 of 2021 in FCOP No.32 of 2020. By the said Order, the petitioner was directed to pay the respondent herein Rs.20,000/- per month towards interim maintenance till disposal of the FCOP.

The learned counsel for the petitioner inter alia contended that the Revision Petition against the Order under challenge is maintainable as the same is only an Interlocutory Order pending disposal of the main Petition filed for dissolution of the marriage. The learned counsel, in this regard, placed reliance on the decision of a Full Bench of High Court of Patna reported in 2010 Law Suit (Pat) 1278.

However, a Hon'ble Division Bench of the Delhi High Court in Manish Aggarwal vs. Seema Aggarwal, FAO No.388 of 2012, dated 13.9.2012 while referring to the relevant provisions of the Hindu Marriage Act (HM Act) and the decisions rendered by different High Courts held that in respect of the Orders passed under Sections 24 to 27 of the Hindu Marriage Act, appeals would lie under Section 19(1) of the Family Courts Act to the Division Bench, in view of the proviso to Sub-section (6) of Section 19 of the said Act, such Orders being in the nature of intermediate Orders. The Hon'ble Division Bench further clarified that all Civil Revision Petition No.675 of 2022 the Orders as may be passed by the Family Courts in exercise of its jurisdiction under Section 7 of the Hindu Marriage Act, which have a character of an intermediate Order, and are not merely interlocutory Orders, would be amenable to the appellate jurisdiction under Sub-section (1) of Section 19 of the Family Courts Act.

The learned Single Judge of the Madras High Court in fact taken a similar view while referring to the Orders of the Division Bench of Delhi High Court referred to above. The relevant portion of the order reads as follows:-

"In my considered view, since an order made under Section 24 of the Hindu Marriage Act puts an end to the right of the claimant for interim alimony, as well as, the litigation expenses, assuming that it is an order, certainly, it is not interlocutory order

as this order will have no bearing on the main case. As has been held by the Division Bench of the Delhi High Court, in Manish Aggarwal's case cited supra, at the most, we may call it as an intermediate order, which is appealable under Section 19(1) of the Family Courts Act".

In the light of the well considered decision of the Delhi High Court, this Court is inclined to follow the same and hold that the present C.R.P is not maintainable.

However, considering the submissions made by the learned counsel for the petitioner, it is deemed appropriate to permit the petitioner to convert the present Civil Revision Petition into an Appeal.

After conversion of the matter, the Registry shall obtain necessary Orders from the Hon'ble the Chief Justice for listing the matter before the appropriate Division Bench.

_____ NJS, J IS